



**SUPERIOR COURT OF SAN MATEO COUNTY**

**Probate - Probate**

**Courtroom 2C**

**Hearing Date: 06/25/2026 - 09:00 AM**

06/16/2026

12:52 PM

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**Judge:** Novak, Lisa A.

**Clerk:** Ortega, Alexandrina

**Reporter:** Conde, Wendy

|                     |                                                                                                                                                |                                               |
|---------------------|------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------|
| <b>26-PRO-00078</b> | <b>IN RE: THE PHILIP VICTOR ZEMTZOV SPECIAL NEEDS TRUST, ESTABLISHED UNDER THE ALINE MINVIELLE 2002 REVOCABLE TRUST DATED DECEMBER 4, 2002</b> | PETITION FOR APPOINTMENT OF SUCCESSOR TRUSTEE |
| <b>Line 7</b>       | Petitioner: Zemtsov, Paul Victor ( JELLINS, NICHOLAS P.)<br>Decedent: MINVIELLE, ALINE                                                         | Petition Hearing                              |

**Tentative Ruling:**

APPEARANCE OPTIONAL

Petition GRANTED, absent cogent objection

|                     |                                                                                                                                                                                                                                                                                                                                                                |                                                  |
|---------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------|
| <b>26-PRO-00085</b> | <b>Conservatorship of William Montoya</b>                                                                                                                                                                                                                                                                                                                      |                                                  |
| <b>Line 8</b>       | Proposed Conservatee: Montoya, William ( TOLEDO, LETICIA G.)<br>Petitioner: San Mateo County Public Guardian ( SAN MATEO COUNTY ATTORNEY'S OFFICE<br>HAULK, JENNIFER L.)<br>Proposed Conservator: San Mateo County Public Guardian<br>Temporary Conservatee: Montoya, William ( TOLEDO, LETICIA G.)<br>Temporary Conservator: San Mateo County Public Guardian | Appointment of Conservator for Person and Estate |

**Tentative Ruling:**

APPEARANCE ORDERED (Zoom allowed)

The Court intends to rule as follows:

1. The San Mateo County Public Guardian be appointed conservator of the person and estate of William Montoya and a conservatorship is the least restrictive alternative to protect the conservatee.
2. The conservator be granted exclusive medical authority powers.
3. Any and all Powers of Attorney and Advanced Healthcare Directives previously executed by Mr. Montoya be revoked in favor of the conservatorship. All end-of-life wishes are to be respected.
4. A nonappearance hearing on the conservator's filing of the following documents be set for October 9, 2026:
  - a) Confidential Conservatorship Care Plan Parts 1&2 (forms GC-355 & GC-356)
  - b) Inventory and Appraisal (GC-040)



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c) Notice of Filing of Inventory and Appraisal and How to Object to the Inventory or the Appraised Value of Property (GC-042)

5. Pursuant to Probate Code Section 1830, the conservator(s) file a proof of mailing of the Notice of Conservatee's Rights within thirty (30) days of appointment.

6. The request to pay to the conservatee an allowance of \$150.00 be approved.

7. Statutory fees of \$500.00 for the cost of the Public Guardian's investigation and \$250.00 for the case initiation fee be approved.

8. The Court order payment of \$850.00 for the current investigation, plus \$425.00 for the cost of the investigation of the petition for temporary conservatorship, from the conservatorship estate to the Superior Court of San Mateo County within ninety (90) days.

9. The conservatorship be reviewed in one (1) year.

10. Independent Counsel is discharged.

|                     |                                                                                                                                              |                                                                                                               |
|---------------------|----------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------|
| <b>26-PRO-00109</b> | <b>Guardianship of Alvin Arbey Velazquez Soto</b>                                                                                            |                                                                                                               |
| <b>Line 9, 10</b>   | Petitioner: Velazquez Soto, Alvin Arbey ( ELDER, STEPHANIE)<br>Ward: Velazquez Soto, Alvin Arbey<br>Proposed Guardian: Soto Gordillo , Sofia | Appointment of Guardian for<br>Person of the Minor<br><br>Petition for Special<br>Immigrant Juvenile Findings |

## Tentative Ruling:

APPEARANCE ORDERED [ZOOM not allowed]

The minor's declaration in support of the petition for SIJF is not signed, with the attachment indicating his signature is on a Judicial Council form. The Court cannot find said form. The Court requires a signed document from the petitioner declaring under penalty of perjury that he has read the attachment and that the facts set forth therein are true. With that, the Court would be prepared to grant the request to dispense with notice to the father and paternal grandmother and GRANT both petitions.